



**Employee Handbook –
Massachusetts Addendum
January 2026**

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Discrimination And Non-Harassment (Including Sexual Harassment) Retaliation Prohibition

The Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If employees feel they have been subjected to any such retaliation, they should report it in the same manner in which they would report a claim of perceived harassment under this policy.

Violation of this policy, including any improper retaliatory conduct, will result in disciplinary action, up to and including termination.

While employees are encouraged to report claims internally, if they believe they have been subjected to sexual harassment or other harassment in violation of state law, they may file a formal complaint with the government agency or agencies set forth below. Using the Company's complaint process does not prohibit the employee from filing a complaint with these agencies.

United States Equal Employment Opportunity Commission (EEOC), JFK Federal Building, Room 475, Boston, Massachusetts 02203, (617) 565-3200

The Massachusetts Commission Against Discrimination (MCAD)

Boston Office One Ashburton Place, Room 601, Boston, Massachusetts 02108, (617) 994-6000

Springfield Office: 436 Dwight Street, Room 220, Springfield, Massachusetts 01103, (413) 739-2145

New Bedford Office: 128 Union Street, Suite 206, New Bedford, Massachusetts 02740, (774) 510-5801

Worcester Office: 484 Main Street, Room 320, Worcester, Massachusetts 01608, (508) 453-9630

Jury Duty Leave

Semantic Arts realizes that it is the obligation of all U.S. citizens to serve on a jury when summoned to do so. All employees will be allowed time off to perform such civic service as required by law. Employees are expected, however, to provide proper notice of any request

to perform jury duty and verification of their service, including fees received for jury duty service.

Employees also are expected to keep management informed of the expected length of jury duty service and to report to work for the major portion of the day if excused by the court. If the required absence presents a serious conflict for management, employees may be asked to try to postpone jury duty.

The Company will pay regularly employed jurors their regular wages for the first three (3) days of jury service. Courts may excuse employers from the duty to compensate juror-employees in cases of extreme financial hardship. In such cases, the court will award the juror reasonable compensation in lieu of wages, up to \$50 a day, for the first three (3) days of juror service. Alternate jurors will receive the same payments and reimbursements from their employers and the commonwealth as jurors.

Exempt employees will be paid their full salary less jury duty fees for any week in which they performed work for the Company and missed work solely due to jury service.

Paid Family and Medical Leave Benefits

Eligibility Requirements

All employees working in Massachusetts are eligible for paid family and medical leave benefits under the Massachusetts Paid Family and Medical Leave Act (PFMLA), provided they are eligible for unemployment compensation in Massachusetts and receive wages from a Massachusetts employer. Former employees also may be eligible for paid benefits, to the extent they have been separated from the Company for not more than 26 weeks at the start of their leave and have not found subsequent employment at the time their leave begins.

Entitlement

Eligible employees may take up to 26 weeks of job-protected Paid Family and Medical Leave (PFML) for certain family and medical reasons during the course of a benefit year.

The benefit year is calculated prospectively looking at the 52-week period beginning on the Sunday *immediately preceding* the first day of job-protected leave for the employee. PFML may be taken for any one (1), or for a combination, of the following reasons:

- *Up to 12 weeks of family leave:*
 - To bond with a child during the first 12 months after the child's birth, adoption, or foster care placement;

- For a qualifying exigency arising out of the fact that a family member is on active duty or has been notified of an impending call to active duty in the Armed Forces; or
- To care for a covered family member, who has a serious health condition;
- *Up to 26 weeks of family leave to care for a family member who is a covered service member with a serious health condition; or*
- *Up to 20 weeks of medical leave for their own serious health condition that makes them unable to perform one (1) or more of the essential functions of their job.*

For purposes of this policy, a covered family member includes the employee's spouse, domestic partner, child, parent, parent of a spouse or domestic partner, a person who stood in loco parentis when the employee was a minor child, grandchild, grandparent, or sibling.

For purposes of this policy, a serious health condition is an illness, injury, impairment, or physical or mental condition that involves inpatient care in a hospital, hospice, or residential medical facility or continuing treatment by a health care provider.

For purposes of this policy, qualifying exigencies may include caring for a military member's child or other family member of the military member on covered active duty, making financial or legal arrangements for the military member, attending counseling, attending military events or ceremonies, spending time with the military member during a rest and recuperation leave or following return from deployment, or making arrangements following the death of the military member.

For purposes of this policy, a covered servicemember is either:

1. A member of the Armed Forces, including a member of the National Guard or Reserves, who is
 - a. Undergoing medical treatment, recuperation, or therapy;
 - b. Otherwise in outpatient status; or
 - c. Otherwise on the temporary disability retired list for a serious injury or illness that was incurred by the member in the line of duty on active duty in the Armed Forces, or a serious injury or illness that existed before the beginning of the member's active duty and was aggravated by service in the line of duty on active duty in the Armed Forces; or
2. A former member of the Armed Forces, including a former member of the National Guard or Reserves, who is undergoing medical treatment, recuperation or therapy for a serious injury or illness that was incurred by the member in line of duty on active duty in the Armed Forces, or a serious injury or illness that existed before the beginning of the member's active duty and was aggravated by service in line of duty

on active duty in the Armed Forces and manifested before or after the member was discharged or released from service.

Leave and benefits are administered by the Massachusetts Department of Family and Medical Leave (DFML). Although the Company provides wage income verification to the DFML, all benefits determinations are made exclusively by the DFML. The DFML calculates weekly benefits as follows:

- The portion of the employee's average weekly wage that is equal to or less than 50% of the state average weekly wage is replaced at a rate of 80%; and
- The portion of the employee's average weekly wage that is more than 50% of the state average weekly wage is replaced at a rate of 50%, up to the applicable weekly benefit limits.

The first seven (7) calendar days of leave are unpaid by the DFML, except for family leave following a medical leave for pregnancy or childbirth, in which case the seven- (7-) day waiting period for the family leave will be waived. During any unpaid waiting period, employees may elect to use accrued vacation, paid time off (PTO), personal time, or sick time (provided the need for leave is covered under the sick time policy), to replace their regular income. Typically, employees will start receiving benefits from the DFML not less than 14 days after the DFML approves the leave and receipt of benefits unless the DFML approves benefits more than 14 days before the onset of eligibility to take leave.

Supplementation of DFML Benefits with Company Benefits

Employees may supplement the DFML's benefits with accrued vacation, PTO, personal time, or sick time (assuming the reason for taking PFML is covered under the sick time policy) provided the total amount of PFML benefits and paid time off does not exceed the employee's average weekly wage. Receipt of such benefits does not extend PFML entitlements, which will run concurrently with any Company-provided benefits. Employees also may supplement benefits for their own serious health condition with short- and/or long-term disability benefits if available.

Use of Leave

PFML is usually taken for a period of consecutive days, weeks, or months. However, employees also are entitled to take PFML intermittently or on a reduced leave schedule when medically necessary due to a serious health condition of the employee or family member. Qualifying exigency leave also may be taken on an intermittent or reduced leave schedule.

Intermittent leave may be taken in increments of 15 minutes. Please note that the DFML will not pay PFML benefits in increments of less than 15 minutes. In addition, the DFML only

permits employees to apply for payment of benefits employeeed with intermittent leave once they have eight (8) hours of accumulated leave time, except where more than 30 calendar days has lapsed since the employee initially took such leave.

Employees are required to work with the Company to create an agreed-upon intermittent or reduced leave schedule. Failure to comply with the agreed-upon schedule may result in discipline.

The use of intermittent leave will result in the proportional reduction of the employee's available allotment of leave. For example, if the employee normally works 40 hours per week and takes intermittent leave for 20 hours each week, then it will be counted as half a week of leave to be counted against the employee's leave entitlement.

Notice

To trigger PFML protections, employees must inform Human Resources of the need for leave and the anticipated timing and duration of the leave, if known. The notice must state:

- The anticipated start date of the leave;
- The anticipated length of the leave; and
- The expected return date.

Employees must provide the Company at least 30 days' advance notice of the need to take PFML when the need is foreseeable. Such notice must be provided before employees apply to the DFML. When 30 days' notice is not possible, or the approximate timing of the need for leave is not foreseeable, employees must provide the Company notice of the need for leave as soon as practicable.

When planning medical treatment, employees must consult with the Company and make a reasonable effort to schedule treatment so as not to unduly disrupt Company operations. Employees must consult with the Company prior to scheduling treatment to work out a treatment schedule which best suits the needs of both the Company and the employee.

The DFML may deny or delay leave and benefits for employees who: fail to give the Company at least 30 days' notice for foreseeable leave without a reasonable excuse for the delay; apply to the DFML before notifying the Company; or otherwise fail to satisfy PFMLA notice obligations.

Application to the DFML

After providing notice to the Company (unless the need for leave is unforeseeable), employees should apply directly to the DFML for leave and benefits. Employees are required to use the forms provided by the DFML, and their application for benefits may not be

processed unless the application for benefits includes *all* information necessary for the DFML's review and processing. The DFML requires the following information:

1. Identifying information, such as Social Security Number or Individual Taxpayer Identification Number;
2. Nature of the leave, whether family leave or medical leave;
3. Starting date and expected duration of the leave;
4. Whether the leave will be continuous or intermittent;
5. The Company name and identification number;
6. Evidence that notice was provided to the Company in advance of the application for benefits, including the date notice was provided to the Company;
7. Any denied, granted, or pending requests for leave for a qualifying reason from the Company during the last 12 months;
8. Attestation regarding the family relationship in the form specified by the DFML if the leave involves an application for family leave benefits; and
9. Completed certification based on the type of leave in the form specified by the DFML.

Employees may be required to provide additional specific information requested by the DFML where reasonably necessary to review and process an application for benefits including but not limited to whether the employee will be receiving any other wage replacement. It is the employee's responsibility to provide the DFML with timely, complete, and sufficient information, certifications, or other documents supporting the need for leave.

Amendment or Extension of Leave Period and Paid Leave Benefits

If there is a change in relevant circumstances that would justify an extension, reduction, or other modification of the period of leave, the employee and the Company must notify the DFML within seven (7) calendar days of said change using the forms required by the DFML. For extensions, specifically, the employee must make a request for extension at least 14 calendar days prior to the expiration of the original approved leave. The DFML may consider late filed requests upon a showing of good cause by the employee. The request for extension must include:

- The reason for the extension;
- The requested duration of the extended leave;
- The date on which the covered individual provided notice for the request for extension to the Company; and
- A newly completed or updated health care certification supporting the need for leave.

Job Benefits and Protection

During PFML, the Company will maintain health coverage under any employment-related health insurance on the same terms and conditions as if the employee had continued to work. If Company-provided benefits are used as a substitute for the DFML's benefits, the Company will deduct the employee's portion of any applicable health plan premium as a regular payroll deduction. If the employee is not receiving any Company-benefits during the leave, the employee must make arrangements with Human Resources prior to taking leave to pay their portion of any applicable health insurance premiums each month.

Unless otherwise provided by applicable law, employees returning from PFML will be restored to their previous or equivalent positions with equivalent status, pay, benefits, length-of-service credit, and seniority as of the date of the leave.

Return to Work/Fitness for Duty Medical Certifications

Unless notified otherwise, employees returning to work from PFML taken for their own serious health conditions must provide the Company with a medical certification confirming they are able to return to work and perform the essential functions of their positions, with or without reasonable accommodation. The Company may delay and/or deny job restoration until employees provide return to work/fitness for duty certifications.

Interaction with Other Leave Policies

Leave taken pursuant to the PFMLA will run concurrently with leave taken under other applicable state and federal leave laws, including without limitation the Massachusetts Parental Leave Act and the federal Family and Medical Leave Act of 1993, when the leave is for a qualified reason under those laws.

Right to an Appeal

Employees who are denied leave pursuant to the PFMLA may submit an appeal to the DFML. The appeal must be filed within 10 calendar days of receipt of the denial. The deadline may be extended by the DFML upon a showing of circumstances beyond the employee's control. In addition, the employee is required to provide a complete copy of the request for appeal to the Company. Employees may request a hearing with the DFML and a final decision will be issued by the DFML affirming, modifying, or revoking the initial determination made by the Company.

Employees aggrieved by the DFML's final decision may further appeal by filing a complaint in district court for the county in the Commonwealth where the employee resides or was last employed. The complaint must be filed within 30 calendar days of the date the DFML's final decision is received by the employee.

Questions and/or Complaints about PFMLA Leave

Questions regarding this PFML policy, should be directed to Human Resources. For questions about determinations by the DFML on leave eligibility, entitlement, and/or benefits, employees should contact the DFML directly. The Company is committed to complying with the PFMLA and, whenever necessary, shall interpret and apply this policy in a manner consistent with the PFMLA.

The PFMLA makes it unlawful for the Company to discriminate, retaliate, threaten to retaliate, or interfere with the exercise of any rights provided under the PFMLA. In addition, the Company may not retaliate or threaten to retaliate against employees who have filed a complaint, have caused a complaint to be filed, have or will participate or testify in a proceeding relating to a violation of the PFMLA, or have given or are about to give information connected to a proceeding relating to a violation of the PFMLA. If employees believe their PFMLA rights have been violated, they should contact Human Resources immediately. The Company will investigate any PFMLA complaints and take prompt and appropriate remedial action to address and/or remedy any PFMLA violation. Employees also may file PFMLA complaints with the DFML alleging PFMLA violations.

Parental Leave

The employee who has completed three (3) consecutive months of full-time employment may be entitled to eight (8) weeks of parental leave for the purpose of giving birth or for the placement of a child under the age of 18, or under the age of 23 if the child is mentally or physically disabled, for adoption with the employee who is adopting or intending to adopt the child or for the placement of a child with the employee pursuant to a court order. The employee who either has multiple births or adopts more than one (1) child at the same time is entitled to eight (8) weeks of leave for each child. If two (2) employees seek to take parental leave in connection with the same child, then they are entitled to a total of eight (8) weeks of parental leave in the aggregate for the birth or adoption of that child.

To be eligible for this leave, the employee must give notice of the anticipated date of departure and intention to return to work to Human Resources at least two (2) weeks in advance, or as soon as practicable if the delay is for reasons beyond the employee's control.

Parental leave will be without pay, except that if the employee has accrued unused paid time off, the employee may choose to use such time concurrently with all or part of the leave. Thus, if the employee is eligible for both leave under the Family and Medical Leave Act (FMLA) and parental leave under this policy, the employee may (but is not required to) use accrued paid time off for the period of leave covered by this policy.

At the conclusion of a parental leave, employees will be reinstated to their previous position or a similar position with the same rate of pay they received at the commencement of the

leave. The Company, however, may not reinstate the employee on parental leave to the previous position or a similar position if other employees of equal seniority or status in the same or similar position(s) have been laid off due to economic conditions or have been otherwise affected by changes in employment conditions during the period of leave. While parental leave may be extended, unless otherwise provided by applicable law, reinstatement may not be guaranteed at the conclusion of a parental leave that is more than eight (8) weeks in duration.

A parental leave will not affect the employee's ability to receive paid time off, bonuses, advancement, seniority, or other benefits for which the employee was eligible on the date leave began, however, the leave period will not be included in the computation of such benefits. Parental leave runs concurrently with leave provided under any other applicable policy in the handbook including, without limitation, leave under the FMLA and/or MPFL policy, if applicable. Parental leave also runs concurrently with any time period qualifying the employee for receipt of monetary benefits, including benefits received under any short-term disability policy. The receipt of such monetary benefits or use of paid time off during any period of parental leave does not extend the length of the leave.

Employees with questions or concerns regarding this policy can contact Human Resources.